

Amit Kumar vs State Of U.P. Thru. Prin. Secy. Home Lko. ... on 15 May, 2023

Bench: Sangeeta Chandra, Narendra Kumar Johari

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Neutral Citation No. - 2023:AHC-LKO:33644-DB

Court No. - 10

Case :- CRIMINAL MISC. WRIT PETITION No. - 7629 of 2022

Petitioner :- Amit Kumar

Respondent :- State Of U.P. Thru. Prin. Secy. Home Lko. And Others

Counsel for Petitioner :- Aishwarya Pratap Singh,Sandeep Kumar(Trivedi)

Counsel for Respondent :- G.A.,Dr. Pooja Singh,Jay Prakash Singh,Rajesh Pandey

Hon'ble Mrs. Sangeeta Chandra,J.

Hon'ble Narendra Kumar Johari,J.

(1) Heard learned counsel for the petitioner, learned A.G.A. for the State, learned counsel for the respondent nos. 4 & 5 and perused the record.

(2) The present writ petition has been filed with the following main reliefs :-

"i) a writ, order or direction in the nature of Certiorari quashing the First Information Report No.1049/2019 against the petitioner under section 498A/323/504/506/377/418/328 I.P.C. and Section 3/4 of Dowry Prohibition Act Police Station Gazipur, District Lucknow as contained in Annexure No.1 to this Writ petition.

ii) Issue a Writ order or direction in the nature of Mandamus directing/ commanding the opp. parties no, 2 to 3 not to arrest the petitioner against the Impugned F.I.R.

under section 498A/323/504/506/377/418/328 IPC and 3/4 D.P. Act Police Station Gazipur, District Lucknow"

(3) In pursuance of the earlier order passed by this Court on 10.05.2023, petitioner and respondent nos.4 & 5 are present before this Court. A demand draft dated 12.05.2023 amounting to Rs.25 lakhs has been handed over in the Court to the private respondents.

(4) Learned counsel for the respondent has admitted that an application under Section 13 (B) of the Hindu Marriage Act has already been filed before the Court.

(5) Both the parties have arrived at a compromise. In such a situation, the Court has inherent jurisdiction to pass a suitable order as may be necessary to prevent the abuse of process of law to secure the ends of justice.

(6) The Co-ordinate Bench of this Court had occasioned to discuss the power of the Court in the case of Nazmul Hasan and Ors. Vs. State of U.P. & Ors. [2018 (7) ADJ 245] in which it has held in paras 15 which read as under :

"15. Considering the compromise arrived at between the parties on 7.5.2018, as extracted above in paragraph 5 and the categorical stand of the opposite party No. 3 before this Court, we are of the considered opinion that no useful purpose would be served in continuation of criminal proceedings in pursuance of the impugned First Information Report lodged by opposite party No. 3. Accordingly, it would be appropriate, in the facts and circumstances of the case, to quash the impugned First Information Report as continuation of the proceedings of the First Information Report would be a futile exercise."

(7) The Co-ordinate Bench of this Court has given another judgement in the case of Dinesh Sharma and Ors.Vs. State of U.P and Ors. [2017 (Suppl.) ADJ 613] on the same point.

(8) In the case of Jitendra Raghuvanshi and Ors. Vs. Babita Raghuvanshi and Ors. [2013 (4) ADJ 40], the Apex Court considering the previous judgments of the Supreme Court has held that the criminal proceedings can be quashed by this Court under its inherent power on the basis of mutual settlement.

(9) The Apex Court in the case of Shiji @ Pappu and Ors. Vs. Radhika and another [2011 CJ (SC) 239] has scrutinized the legal position in case of compromise in criminal cases in which the dispute was private in nature and continuation of proceeding will be sheer abuse of process of law and in this context the technicality should not be allowed to stand in the way of quashing criminal proceeding. Although the power should be used by the court sparingly. It has been held by Apex Court by referring the previous judgments that :

"11. That brings to the decision of this Court in Madan Mohan Abbot' case (supra) whereby the High Court had declined the prayer for quashing of the prosecution for

offences punishable under Sections 379, 406, 409, 418, 506/34 IPC despite a compromise entered into between the complainant and the accused. The High Court had taken the view that since the offence punishable under Section 406 was not compoundable the settlement between the parties could not be recognized nor the pending proceedings quashed. This Court summed up the approach to be adopted in such cases in the following words :

"6. We need to emphasise that it is perhaps advisable that in disputes where the question involved is of a purely personal nature, the court should ordinarily accept the terms of the compromise even in criminal proceedings as keeping the matter alive with no possibility of a result in favour of the prosecution is a luxury which the courts, grossly overburdened as they are, cannot afford and that the time so saved can be utilis`ed in deciding more effective and meaningful litigation. This is a common sense approach to the matter based on ground of realities and bereft of the technicalities of the law.

7. We see from the impugned order that the learned Judge has confused compounding of an offence with the quashing of proceedings. The outer limit of Rs 250 which has led to the dismissal of the application is an irrelevant factor in the later case. We, accordingly, allow the appeal and in the peculiar facts of the case direct that FIR No. 155 dated 17-11-2001 PS Kotwali, Amritsar and all proceedings connected therewith shall be deemed to be quashed."

(10) To the same effect is the decision of this Court in Nikhil Merchant v. CBIMANU/SC/7957/2008 : 2008 (9) SCC 677, wherein relying upon the decision in B.S.Joshi (supra), this Court took note of the settlement arrived at between the parties and quashed the criminal proceedings for offences punishable under Sections 420, 467, 468 and 471 read with Section 120B of IPC and held that since the criminal proceedings had the overtone of a civil dispute which had been amicably settled between the parties it was a fit case where technicality should not be allowed to stand in the way of quashing of the criminal proceedings since the continuance of the same after the compromise arrived at between the parties would be a futile exercise. We may also at this stage refer to the decision of this Court in Manoj Sharma v. State and Ors. MANU/SC/8122/2008 : (2008) 16 SCC 1. This Court observed :

"8. In our view, the High Court's refusal to exercise its jurisdiction under Article 226 of the Constitution for quashing the criminal proceedings cannot be supported. The first formation report, which had been lodged by the complainant indicates a dispute between the complainant and the accused which is of a private nature. It is no doubt true that the first information report was the basis of the investigation by the police authorities, but the dispute between the parties remained one of a personal nature. Once the complainant decided not to pursue the matter further, the High Court could have taken a more pragmatic view of the matter.

9. As we have indicated herein before, the exercise of power under Section 482 Code of Criminal Procedure of Article 226 of the Constitution is discretionary to be exercised in the facts of each case. In the facts of this case we are of the view that continuing with the criminal proceedings would be an exercise in futility."

(11) In the case of Nikhil Merchant Vs. Central Bureau of Investigation [2008 CJ (SC) 1114], the Apex Court has discussed the scope of compromise where the disputes are private in nature and quashed the criminal proceedings on the basis of mutual compromise.

(12) The Hon'ble Apex Court in the case of Manoj Sharma v. State and Ors. MANU/SC/8122/2008 : (2008) 16 SCC 1, has held that the High Court has ample power under Article 226 of the Constitution of India to exercise the power to quash the first information report where the dispute is private in nature. The High Court should take a pragmatic view in the matter.

(13) The Hon'ble Apex Court in the case of Madan Mohan Abbot Vs. State of Punjab (Civil Appeal No. 555 of 2008 (arising out of SLP (Crl.) No. 4579 of 2006) decided on 26.3.2008) also has discussed that the dispute is purely personal in nature and arose out of extensive business dealing and where there is no public policy involved, the Court should ordinarily accept the terms of compromise.

(14) In view of above, considering the submission of learned counsels of both the contesting parties and observations of Apex Court as well as of this Court, in the opinion of the Court, the High Court has ample power under its inherent jurisdiction to quash the first information report in which the parties have settled their disputes which are of private in nature and have no any grave impact on the society. The time of courts as well as investigating agencies are very precious which should not be wasted in any futile proceedings where the chance of conviction is bleak.

(15) Accordingly, the writ petition is allowed and the proceedings of impugned First Information Report dated 21.12.2019, registered at F.I.R./Crime No.1049 of 2019, under Sections 498-A, 323, 504 of the I.P.C. and Section 3/4 of the Dowry Prohibition Act, Police Station - Gajipur, District - Lucknow, are hereby quashed.

(16) Since the F.I.R. has already been quashed, all consequential actions by the Police also stand nullified.

Order Date :- 15.5.2023 Rahul